

Constitutional Council (Functions, Duties, Powers and Procedures) Act, 2010

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1. Short Title and Commencement: (1) This Act may be cited as the "Constitutional Council (Work, Duties, Powers and Procedure) Act, 2066".

(2) This Act shall come into force immediately. 2. Definitions: Unless the subject or context otherwise requires, in this Act,-

(a) "Chairperson" means the Chairperson of the Council.

(b) "Office-bearer" means the following office-bearers appointed on the recommendation of the Council:-

(1) Chief Justice of the Supreme Court,

(2) Chief Commissioner and Commissioners of the Commission for the Investigation of Abuse of Authority,

(3) Auditor General,

(4) Chairperson and Members of the Public Service Commission,

(5) Chief Election Commissioner and Election Commissioners of the Election Commission,

(6) Chairperson and Members of the National Human Rights Commission,

Added by the Act Amending Some Nepal Acts, 2072.(7) Chairperson and Members of the National Natural Resources and Finance Commission,

Added by the Act Amending Some Nepal Acts, 2072.(8) Chairperson and Members of the National Women Commission,

Added by the Act Amending Some Nepal Acts, 2072.(9) Chairperson and Members of the National Dalit Commission,

Added by the Act Amending Some Nepal Acts, 2072.(10) Chairperson and Members of the National Inclusion Commission,

Added by the Act Amending Some Nepal Acts, 2072.(11) Chairperson and Members of the Indigenous Nationalities Commission,

Added by the Act Amending Some Nepal Acts, 2072.(12) Chairperson and Members of the Madhesi Commission,

Added by the Act Amending Some Nepal Acts, 2072.(13) Chairperson and Members of the Tharu Commission,

Added by the Act Amending Some Nepal Acts, 2072.(14) Chairperson and Members of the Muslim Commission.

(c) "Council" means the Constitutional Council formed pursuant to Article 284 of the Constitution, amended by the Act Amending Some Nepal Acts, 2072.

(d) "Constitution" means the Constitution of Nepal, amended by the Act Amending Some Nepal Acts, 2072.

(e) "Secretary" means the Secretary of the Council.

(f) "Secretariat" means the Secretariat of the Council pursuant to Section 8.

(g) "Member" means a member of the Council. 3.

Work, Duties and Powers of the Council: In addition to the work, duties and powers mentioned in the Constitution, the other work, duties and powers of the Council shall be as follows:- (a) To recommend for parliamentary hearing for the purpose of sub-article (1) of Article 292 of the Constitution amended by the Act Amending Some Nepal Acts, 2072. for the appointment of office-bearers, (b) To recommend to the President for the appointment of the person who, among the persons recommended pursuant to clause (a), has been communicated in writing by the Federal Parliament Secretariat amended by the Act Amending Some Nepal Acts, 2075. that there is no impediment to making the appointment, (c) To prepare a record of persons qualified for recommendation pursuant to clause (a), (d) To keep updated the record of matters relating to the appointment, term, vacancy, reappointment, etc. of office-bearers. 4. Record to be Prepared: (1) The Secretariat shall prepare and maintain separate records of persons qualified to be appointed to the office of office-bearers of constitutional bodies pursuant to the Constitution. (2) The record prepared pursuant to sub-section (1) shall be confidential and shall remain in the custody of the Secretary. (3) The Secretary shall not give or make public the record pursuant to sub-section (2) to anyone without the approval of the Council. (4) Notwithstanding anything contained elsewhere in this Section, the mere fact that a person's name is not included in such record shall not prevent the recommendation of any person qualified pursuant to the Constitution and law for the office of office-bearer. 5. Procedure to be Adopted when Recommending for Appointment: (1) When recommending a person for appointment to the office of any office-bearer of a constitutional body, the Council shall clearly mention the reason and basis of the qualification and suitability mentioned in the Constitution and prevailing law for being appointed to such office. (2) When recommending a person for appointment pursuant to sub-section (1), the Council shall take into consideration his/her social prestige, high moral character, honesty, public sentiment towards him/her, and his/her previous service and professional experience. 6. Procedure Relating to Meetings of the Council: (1) A meeting of the Council shall be held on such date, time and place as determined by the Chairperson as required. (2) The Secretary shall, in accordance with the direction of the Chairperson, send a notice containing the date, time and place of the meeting of the Council and the agenda for discussion to the Members at least forty-eight hours before the meeting.

Provided that, if any Member feels that it is necessary to discuss any matter not included in the agenda, such Member may, with the permission of the Chairperson, propose it in the meeting.

(3) The presence of the Chairperson and amended by the Act Amending Some Nepal Acts, 2072. at least four other Members shall constitute a quorum for a meeting of the Council.

(4) The meeting of the Council shall be presided over by the Chairperson.

(5) The decision on each matter presented in the meeting shall be made on the basis of consensus.

(6) Sub-section (6) of Section 6 was removed, sub-section (7) amended and sub-section 7(A) added by the Constitutional Council (Work, Duties, Powers and Procedure) (First Amendment) Ordinance, 2077, and by

the Act Repealing Some Ordinances and Replacing the Ordinance Made to Revive the Previous Provision of Nepal Acts, 2077, the provision in effect before the amendment has automatically revived with effect from 2077/1/12. If consensus cannot be reached pursuant to sub-section (5), no decision may be made on that matter.

(7) Sub-section (6) of Section 6 was removed, sub-section (7) amended and sub-section 7(A) added by the Constitutional Council (Work, Duties, Powers and Procedure) (First Amendment) Ordinance, 2077, and by the Act Repealing Some Ordinances and Replacing the Ordinance Made to Revive the Previous Provision of Nepal Acts, 2077, the provision in effect before the amendment has automatically revived with effect from 2077/1/12. On a matter on which no decision could be made pursuant to sub-section (6), the Chairperson shall cause another meeting to be called again, and a decision on that matter shall be made by consensus of such meeting. Provided that, if a decision cannot be made by consensus even in such meeting, the decision shall be made by a majority of all Members of the Council.

(8) The Secretary shall prepare a record of the decision made by the Council and have it signed by the Chairperson and Members.

(9) Other procedures relating to meetings of the Council shall be determined by the Council itself as required.
7.

To Send in Writing for Parliamentary Hearing: (1) If the Council recommends for the appointment of any office-bearer, the Secretary shall send such recommendation in writing to the Federal Parliament Secretariat amended by the Act Amending Some Nepal Acts, 2075. for parliamentary hearing. (2) Upon sending in writing pursuant to sub-section (1), if a person is communicated in writing by the Federal Parliament Secretariat amended by the Act Amending Some Nepal Acts, 2075. that there is no impediment to making the appointment, the Secretary shall, in accordance with the decision of the Council, send in writing to the Office of the President to submit to the President for appointment. 8. Secretariat of the Council: The work of the Secretariat of the Council shall be performed by the Office of the Prime Minister and Council of Ministers. 9. Information to be Given of Office-bearer No Longer in Office: (1) If any office-bearer of any constitutional body ceases to be in office in any manner, the concerned constitutional body shall, within seven days from the date such person ceases to be in such office, send the details thereof in writing to the Secretariat, and also give information thereof to the concerned Ministry. (2) After receiving the information pursuant to sub-section (1) at the Secretariat, the Secretary shall, as soon as possible, inform the Chairperson about the same. 10. Work, Duties and Powers of the Secretary: (1) In addition to the work, duties and powers mentioned elsewhere in this Act, the other work, duties and powers of the Secretary shall be as follows:- (a) To call meetings of the Council in accordance with the direction of the Chairperson, (b) To implement or cause to implement the decisions made by the Council, (c) To arrange to keep the records maintained in the Secretariat updated, systematic and secure, (d) To monitor, control, supervise and coordinate the work to be performed by the Secretariat, and to divide work among the employees of the Secretariat and assign them work, (e) To certify the records kept in the Council, (f) To contact and coordinate with various bodies of the Government of Nepal as well as other bodies as required. (2) The other work, duties and powers of the Secretary, except as mentioned in sub-section (1), shall be as determined by the Council. 11. Provision of Budget and Employees for the Secretariat: (1) The budget required for the Secretariat shall be released by the Ministry of Finance in the name of the Office of the Prime Minister and Council of Ministers. (2) The provision of employees required for the Secretariat shall be made by the Office of the Prime Minister and Council of Ministers. 12.